ComplyTrack India

Indian Compliance Laws Guide

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Sectors Covered: 1

Total Regulations: 12

Disclaimer: This document is for informational purposes only.
Always refer to official government sources for legal compliance.

Table of Contents

1. Service Sector

12 regulations

Service Sector

Source: https://meity.gov.in

1 Information Technology Act, 2000

Section: Sections 1-91A

Primary legislation governing cyber activities, electronic commerce, and digital governance in India. Provides legal framework for electronic transactions, digital signatures, and cybercrime prevention.

Key Requirements:

- Digital signature certificates for e-transactions
- Reasonable security practices for sensitive data
- Data protection compliance
- Cybersecurity framework implementation
- Incident response and reporting to CERT-In
- Website compliance with accessibility norms
- Electronic record maintenance
- Privacy policy disclosure

Penalties for Non-Compliance:

Section 43: Compensation up to Rs. 5 crore for damage to computer systems. Section 66: Imprisonment up to 3 years and fine up to Rs. 5 lakh for hacking. Section 72: Imprisonment up to 2 years for breach of confidentiality.

Source: https://meity.gov.in/content/it-act-2000

2 Information Technology Act - Amendment 2008

Section: Sections 43A, 72A, 85

Amendments introducing data protection provisions, corporate liability, and cybercrime enhancements.

Key Requirements:

- Sensitive personal data protection
- Corporate responsibility for data security
- Penalty for publishing private images
- Intermediary liability guidelines
- Data retention requirements

Penalties for Non-Compliance:

Section 43A: Compensation for failure to protect data. Section 72A: Imprisonment up to 3 years for identity theft.

Source: https://meity.gov.in/content/it-act-2000

3 Indian Copyright Act, 1957

Section: Sections 1-78

Protects literary, dramatic, musical, and artistic works including software. Provides exclusive rights to creators.

Key Requirements:

- Software copyright registration
- License agreements for software use
- Fair use compliance
- Anti-piracy measures
- Copyright notice on websites
- Digital rights management
- Royalty payment compliance

Penalties for Non-Compliance:

Section 63: Imprisonment from 6 months to 3 years and fine from Rs. 50,000 to Rs. 2 lakh.

Source: https://copyright.gov.in

4

Indian Patent Act, 1970

Section: Sections 1-161

Governs patent protection for inventions. Provides exclusive rights to inventors for 20 years.

Key Requirements:

- Patent application filing
- Novelty and non-obviousness requirements
- Patent cooperation treaty (PCT) compliance
- Patent license agreements
- Compulsory licensing provisions
- Annual renewal fees

Penalties for Non-Compliance:

Section 111: Compensation for unauthorized use. Section 120: Imprisonment up to 2 years and fine for false claims.

Source: https://ipindiaonline.gov.in

5

Telegraph Act, 1885

Section: Sections 1-85

Regulates telegraph services in India. Provides licensing framework for telecom operators.

Key Requirements:

- Telecom license from DoT
- Spectrum allocation compliance
- Quality of service standards
- Interconnection regulations
- Tariff regulations
- Lawful interception compliance

Penalties for Non-Compliance:

Section 20: Imprisonment up to 3 years for unauthorized telegraph establishment.

Source: https://www.dot.gov.in

6

TRAI Act, 1997

Section: Sections 1-44

Establishes Telecom Regulatory Authority of India. Regulates telecom services, tariffs, and quality.

Key Requirements:

- TRAI registration and compliance
- Tariff regulation compliance
- Quality of service benchmarks
- Consumer complaint redressal
- Interconnection usage charges
- Spectrum usage charges
- Annual reporting to TRAI

Penalties for Non-Compliance:

Penalty up to Rs. 10 lakh for non-compliance with TRAI directions.

Source: https://www.trai.gov.in

7 Telecommunications (Indian Wireless Telegraphy) Act, 1933

Section: Sections 1-30

Regulates wireless telegraphy apparatus and signals.

Key Requirements:

- Wireless apparatus license
- Equipment type approval
- Possession license for wireless devices
- Import of wireless equipment

Penalties for Non-Compliance:

Section 6: Imprisonment up to 3 years and/or fine up to Rs. 1,000.

Source: https://www.dot.gov.in

8 National Cyber Security Policy, 2013

Section: Policy Framework

Framework for protecting cyber space in India. Establishes National Critical Information Infrastructure Protection Centre (NCIIPC).

Key Requirements:

- Cybersecurity policy implementation
- Incident reporting to CERT-In
- Vulnerability assessment and penetration testing
- Security audits
- Employee cybersecurity training
- Data encryption standards
- Access control measures
- Business continuity planning

Penalties for Non-Compliance:

Non-compliance may result in penalties under IT Act and regulatory action.

Source: https://meity.gov.in/content/national-cyber-security-policy

9 Digital Personal Data Protection Act, 2023

Section: Sections 1-34

India's comprehensive data protection law. Regulates processing of personal data and establishes Data Protection Board.

Key Requirements:

- Consent for personal data processing
- Data fiduciary obligations
- Data processor agreements
- Purpose limitation
- Data minimization
- Storage limitation
- Data breach notification to Board
- Cross-border data transfer rules
- Rights of data principals
- Significant data fiduciary compliance

Penalties for Non-Compliance:

Up to Rs. 250 crore for significant violations. Rs. 50 crore for failure to notify data breaches.

Source: https://meity.gov.in/dpdp-act-2023

10

Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021

Section: Rules 1-32

Regulates intermediaries (social media, platforms) and digital news publishers.

Key Requirements:

- Due diligence by intermediaries
- Grievance redressal mechanism
- Chief compliance officer appointment
- Removal of unlawful content within 36 hours
- Traceability of first originator
- Monthly compliance reports
- Digital media ethics code
- Self-regulatory body registration

Penalties for Non-Compliance:

Section 79: Loss of intermediary immunity for non-compliance.

Source: https://meity.gov.in/intermediary-guidelines

11

BPO/KPO Service Tax and GST Compliance

Section: Service Category

Tax compliance for business process outsourcing and knowledge process outsourcing services.

Key Requirements:

- GST registration and compliance
- Place of supply rules for IT/ITES
- Input tax credit on IT services
- Export of services compliance
- Foreign exchange regulations
- SEZ/STPI compliance

Penalties for Non-Compliance:

Standard GST penalties for non-compliance.

Source: https://www.cbic.gov.in

12

ITeS (Information Technology Enabled Services) Regulations

Section: Industry Framework

Regulatory framework for IT-enabled services including BPO, KPO, and other outsourced services.

Key Requirements:

- Employment contracts and terms
- Data security in outsourcing
- Client data protection
- Service level agreements
- Performance metrics reporting
- Employee training requirements

Penalties for Non-Compliance:

Contractual penalties and loss of business licenses.

Source: https://www.nasscom.in

Appendix

Official Government Sources

- **Reserve Bank of India (RBI)**
  https://www.rbi.org.in
- **Securities and Exchange Board of India (SEBI)**
  https://www.sebi.gov.in
- **Ministry of Corporate Affairs (MCA)**
  https://www.mca.gov.in
- **Income Tax Department**
  https://www.incometax.gov.in
- **GST Council**
  https://www.gstcouncil.gov.in
- **Central Board of Direct Taxes (CBDT)**
  https://www.cbdt.gov.in
- **Ministry of Labour & Employment**
  https://labour.gov.in
- **Employees Provident Fund Organisation (EPFO)**
  https://www.epfindia.gov.in
- **Employees State Insurance Corporation (ESIC)**
  https://www.esic.nic.in
- **Ministry of Environment, Forest & Climate Change**
  https://moef.gov.in
- **Central Pollution Control Board (CPCB)**
  https://cpcb.nic.in
- **Food Safety and Standards Authority of India (FSSAI)**
  https://www.fssai.gov.in
- **Central Drugs Standard Control Organisation (CDSCO)**
  https://cdsco.gov.in
- **National Medical Commission (NMC)**
  https://www.nmc.org.in
- **Telecom Regulatory Authority of India (TRAI)**
  https://www.trai.gov.in
- **Indian Computer Emergency Response Team (CERT-In)**
  https://www.cert-in.org.in

Important Notes

- This document is generated for informational purposes only.
- Always refer to official government websites for the latest regulations.
- Laws and regulations are subject to amendments and updates.
- Consult legal professionals for specific compliance advice.
- Some regulations may have state-specific variations.